

DATE OF COUNCIL MEETING: August 12, 2013

SPONSORS: (ORDINANCE OR RESOLUTION) Sean Allen

(1% Sales Tax Funding/Years) N/A

(Other Funding _____) (Grant _____)

CONTACT PERSON: Donna Ferguson PHONE: 638-4342 DEPT: Planning/Development

OTHER CITY DEPARTMENT AFFECTED: Engineering Tech Branch

OTHER GOV'T AGENCIES AFFECTED: N/A

FINANCIAL IMPACT PROPOSED OR CONDITIONS WHICH AFFECT CITY: N/A

CONTRACT TERM: N/A STARTING DATE: N/A

	YES	NO	N/A
Is funding budgeted?	☐	☐	☒
Were Bids called for?	☐	☐	☒
Affected parties notified of Council procedure and dates?	☒	☐	☐
Has bond, insurance or other security been arranged?	☐	☐	☒
Have legal descriptions been checked?	☒	☐	☐

Agenda Item approved / reviewed by :

Risk Mgr (☐) City Attorney (☐) Dept. Head (☒)

General Comments: The City of Cheyenne Planning Commission recommended approval of the above described zone change request by a vote of 3 to 0 at its meeting on August 5, 2013. See the attached Staff Report for more information.

Submitted by: Brandon Cammarata Title: Planning & Dev Director Date: August 6, 2013

UPON PASSAGE OF THE AGENDA ITEM, COPIES SHOULD BE SENT TO:

Engineering Tech Branch City Clerk's Office

Development Office

STAFF REPORT
“Cheyenne Housing”
Summation

Zone District Map Amendment Process

CASE NUMBER: UDC-13-00263
FILE CODE: PDR-CSZ
PREPARED BY: Donna Ferguson
MEETING DATES: August 5, 2013 – Planning Commission
August 12, 2013 – City Council

Required documents submission:

All required documents have been submitted and reviewed by staff.

- Complete Application
- Zone Change Map

RECOMMENDATION: The Planning and Development Office recommends approval of the zone change request from MUB Mixed-Use Business Emphasis to P Public, pursuant to the review criteria outlined in Article 2, Section 2.2.1.d of the Cheyenne Unified Development Code (UDC).

STAFF REPORT UPDATE (08/6/13): At its meeting on Monday, August 5, 2013, the City of Cheyenne Planning Commission recommended approval of the above described Zone Change by a vote of 3 to 0.

STAFF REPORT
Zone District Map Amendment Process

“Cheyenne Housing”

CASE NUMBER: UDC-13-00263 **File Code:** PDR-CSZ
PREPARED BY: Donna Ferguson
SUBMITTAL DATE: July 1, 2013
PRE-APP MEETING: None
MEETING DATES: August 5, 2013 – Planning Commission
August 12, 2013 – City Council
OWNER: Cheyenne Housing Authority
3304 Sheridan Street
Cheyenne, WY 82009
633-8317
AGENT: Casey Palma
Steil Surveying Services, LLC
1102 W. 19th Street
Cheyenne, WY 82001
634-7273
WORK DESCRIPTION: Zone Change from MUB Mixed-Use Business Emphasis to P Public
DOCUMENTS: Application, Zone Change Map
OTHER: Adjacent property owners were notified by mail
LEGAL: Portion of Lot 1, Block 229, Plaza Del Range and ½ of vacated Vosler Place, Cheyenne, Wyoming
LOCATION: Located at the northwest corner of the intersection of Sheridan Street and Ridge Road
ADDRESS: 3304 Sheridan Street
Cheyenne, WY 82009
PROPERTY SIZE: 74,168 square feet (1.7 acres)
CURRENT ZONING: MUB Mixed-Use Business Emphasis
PROPOSED ZONING: P Public
LAND USE: Office/Public Service use
PROPOSED LAND USE: Office/Public Service use

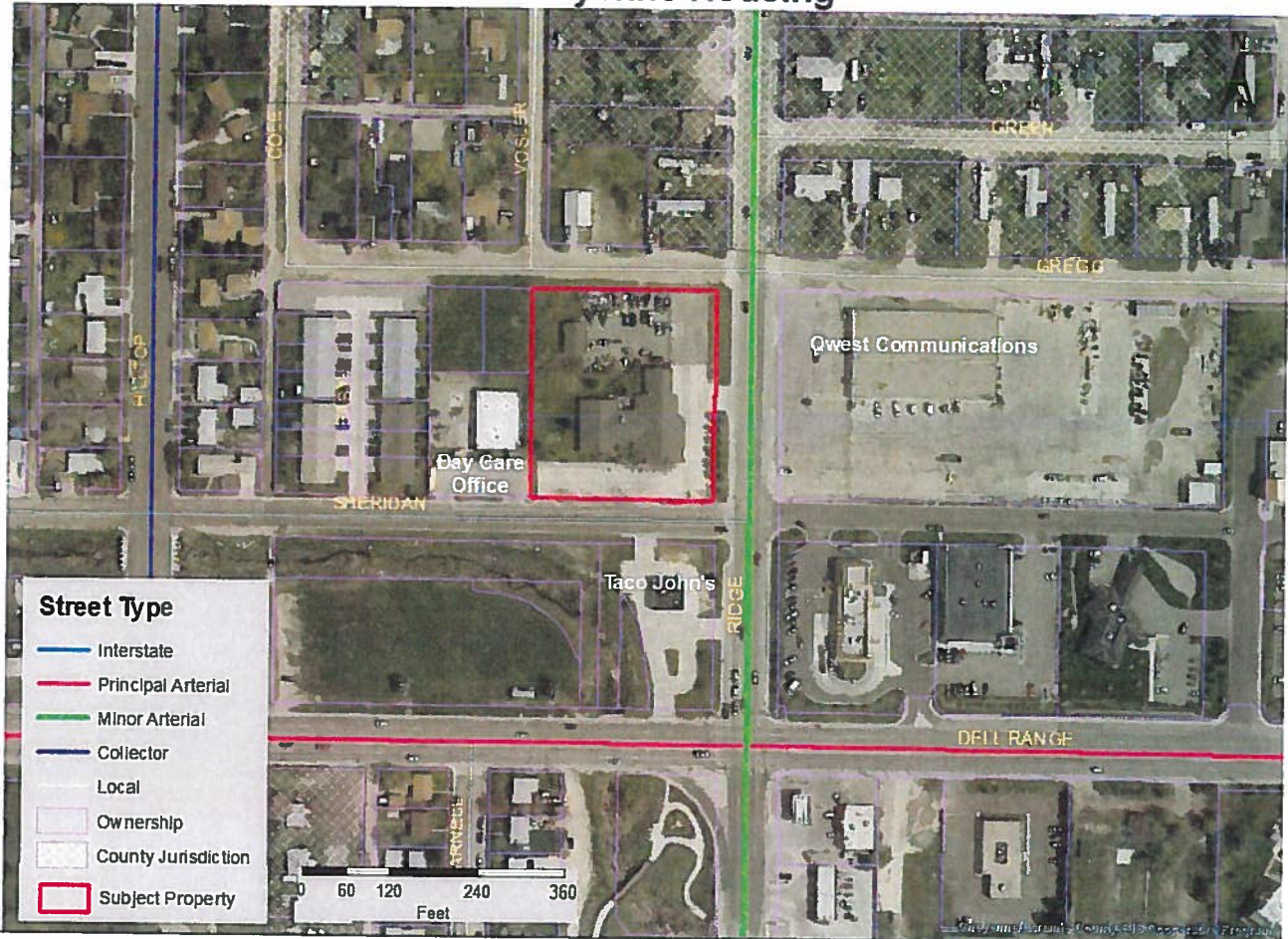
SURROUNDING LAND USES:

DIRECTION	LAND USE(S)	ZONING	ANNEXATION STATUS
North	Light Commercial Utility, Mobile Homes	MUB, MU	City, County
South	Vacant Commercial Business, Taco John's	MUB, CB	City
East	Qwest Communication	MUB	City
West	Vacant MUB, Day Care Center	MUB	City

SUMMARY:

The applicant is requesting a zone change from MUB Mixed-Use Business to P Public for a 74,168 square foot site. The site contains a 10,500 square foot office building, a garage, a parking lot and a fleet fueling station for the Cheyenne Housing Authority. The Cheyenne Housing Authority provides decent, safe, sanitary and affordable housing for the elderly, disabled and the economically disadvantaged. The existing use of the subject property, a quasi-governmental facility which serves the public of Cheyenne, is an established and compatible use within neighborhood. Surrounding land uses include a light commercial utility building, a set of mobile homes, a day care center office, Qwest Communications, Taco John's and vacant property. Currently the site resides in and is surrounded by a MUB zone district which is a district intended for a diverse mix of Residential uses and Non-residential uses which serve adjacent or nearby neighborhoods. The applicant needs to replace their existing underground fuel tank with an above ground fuel tank. In order to enable the construction of the above ground fuel tank the applicant is requesting a zone change to P Public as an above ground fuel tank is not permitted in the MUB zone district. ShapeCheyenne, the City's future land use plan, identifies this area as Public and Quasi-Public. Appropriate uses for the Public and Quasi-Public category are uses related to community services. The Development Office has determined that the requested zone change is supported substantially for the following reasons. It complies with the future land use plan. It meets the intent of the proposed P zone district, and lastly the proposed P zone district is compatible with the surrounding MUB zone district and existing land uses.

Cheyenne Housing



General neighborhood map

ZONE CHANGE DATA:

The applicant is requesting a Zone District Map Amendment (Zone Change) from MUB Mixed-Use Business Emphasis to P Public for a 74,168 square-foot site which contains the main office of the Cheyenne Housing Authority.

ZONE CHANGE ANALYSIS

The subject property is located on the east side of the City just north of Dell Range Boulevard, a busy commercial street. The site contains the main office building and accessory structures for the Cheyenne Housing Authority. The Cheyenne Housing Authority provides decent, safe, sanitary and affordable housing for the elderly, disabled and the economically disadvantaged.

The subject property resides in and is surrounded by a MUB zone district. Other zone districts adjacent to the subject property are a City zoned CB Community Business district to the south and a County zoned MU Mixed Use zone districts to the north.

Adjacent to the subject property to the north is a light commercial utility building and a set of mobile homes. To the west reside a vacant lot and a day care center and to the east resides Qwest Communications. To the south reside another vacant lot and Taco John's.

The site resides on the northwest corner of Sheridan Street and Ridge Road and contains a 10,500 square foot office building, a garage, a parking lot and a fleet fueling station.

The applicant is requesting the zone change in order to construct an above ground fuel tank to replace the existing below ground fuel tank. Per Title 8, Chapter 8.24.020 of the Cheyenne City Code, above ground fuel tanks which exceed 60 gallons are permitted by right in the HI Heavy Industrial zone district and are permitted in the LI Light Industrial or P Public zone districts with the approval of, and under conditions established by, the chief of the Cheyenne Fire Department. It is expected that the above ground fuel tank will be approved should the zone change be approved.

The applicant is proposing to construct the above ground fuel tank with a new fuel pump and locate it within the existing fenced area of the property and remove the existing fuel pump.

In order to enable the construction of the above ground fuel tank the applicant is requesting a zone change to P Public. The P district is intended primarily for public sites, buildings and uses where activities conducted provide service to the public, including educational facilities, recreational areas, and community service facilities.

The current and surrounding MUB district is intended for a diverse mix of Residential, Retail, Service, Employment and Civic uses integrated into a walkable compact development pattern. Non-residential uses may serve adjacent or nearby neighborhoods, as well as uses within the district, where transitions in the intensity of use and scale of buildings ensure compatibility with those neighborhoods.

ShapeCheyenne, the City's future land use plan, identifies this area as Public and Quasi-Public. Appropriate uses for this category are uses related to community services, such as fire stations, schools, libraries, community centers, hospitals, civic buildings, utilities, and cemeteries.

ZONE CHANGE REVIEW CRITERIA ANALYSIS:

In reviewing, providing comments, and making recommendations and decisions on a proposed zoning map amendment, the staff, Planning Commission and City Council shall use the following criteria:

1. The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.

ShapeCheyenne, The City's future land use plan, designates this property as Public and Quasi-Public. This district is intended for uses related to community services. The Cheyenne Housing Authority's use and building is in accordance with both the development policies and physical patterns identified in ShapeCheyenne.

2. The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.

The subject property is primarily surrounded by a MUB zone district which is intended for a diverse mix of Residential, Retail, Service, Employment and Civic uses. Adjacent surrounding land uses include

mobile homes, Qwest Communications, Taco Johns and a day care center office. The existing use of the subject property, a quasi-governmental facility which serves the public of Cheyenne, is an established and compatible use within neighborhood.

3. The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.

Currently, the subject property operates as a quasi-governmental office use which is allowed in either the MUB or P zoning districts, however, the addition of the above ground storage tank makes the subject property suitable for the P zone district and not the MUB zone district. Additionally, the 74,168 square foot property which is square in shape is suitable for development according to the standards of either the P or MUB zone district.

4. The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning.

The subject property and surrounding vicinity are already developed within a well established area of streets, lots and blocks and are substantially served by necessary infrastructure services including utilities, transportation, storm drainage, public safety, and community facilities. The existing office building fits accordingly into the subdivision standards already in place in the neighborhood.

5. The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.

The P district is intended primarily for public sites, buildings and uses where activities conducted provide service to the public and is applicable to government building and uses in areas where it is necessary to support adjacent or nearby development with public services or facilities. The existing use is a quasi-governmental facility which serves the public of Cheyenne and as such supports the Intent and Applicability statements of the proposed P zone district. Additionally, the construction of the above ground fuel tank will require a Site Plan and conformance with the design objectives associated with Article 6, Section 6.3.

6. The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.

The P zone district provides for a range of future development opportunities including Civic uses, some Service uses, limited Industrial uses and other Public Service uses. It is expected that the current quasi-government service use as well as any other permitted use in the P zone district would be able to meet all applicable standards for development in the proposed P zone district.

7. The review and recommendations of other reviewing bodies.

No comments were offered by reviewing bodies.

8. Whether the application will harm the public health, safety, or general welfare.

Granting the zone change request from MUB to P will not harm the public health, safety, or general welfare.

REVIEWING AGENCIES AND REVIEWER'S COMMENTS:

None

REVIEWING AGENCIES WITH NO COMMENT:

Board of Public Utilities
Development
General Engineering
Metropolitan Planning Office
Parks and Recreation
Urban Planning

REVIEWING AGENCIES NOT RESPONDING:

None

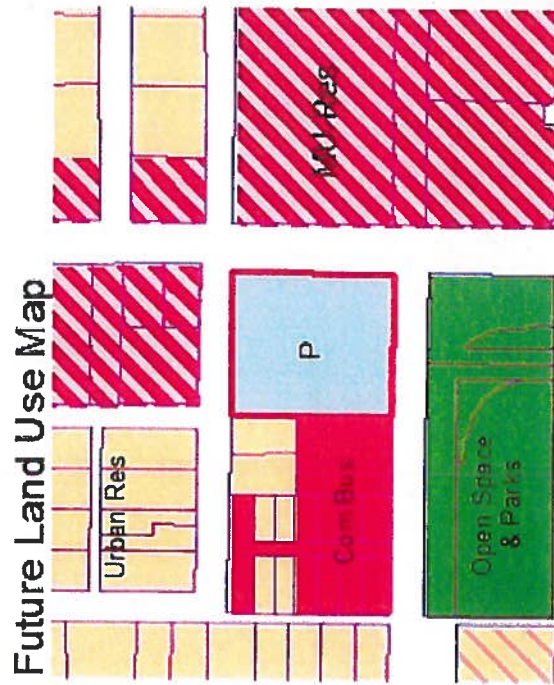
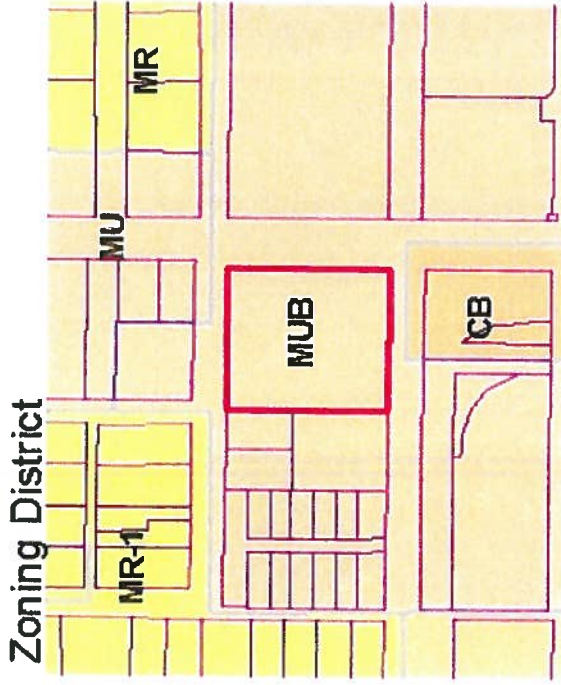
OTHER COMMENTS RECEIVED:

None

Encl: Staff Aerial Map
Zone Change Map
Applicant Criteria Response

cc: Owner
Files - PDR-CSZ, UDC-13-00263

Cheyenne Housing



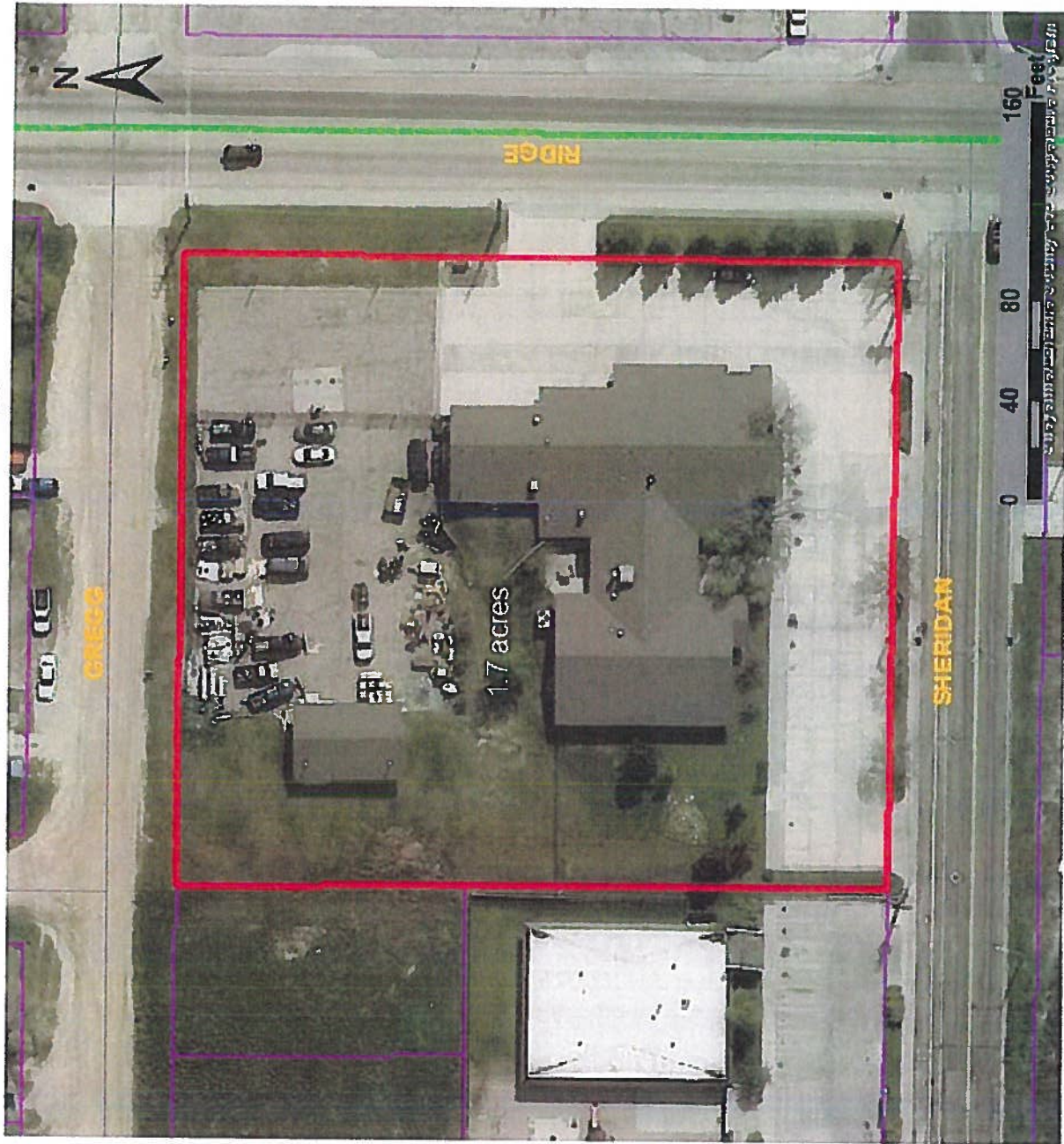
This map is made possible through the Cheyenne City Planning Department's GIS (Geographic Information System) and is for display purposes only. The City of Cheyenne does not warrant the accuracy or completeness of the data shown on this map.



2010 Aerial

UDC-13-00263

Request to change from MUB zone to P zone



In reviewing, providing comments, and making recommendations and decisions on a proposed zoning map amendment, the staff, Planning Commission and City Council shall use the following criteria:

1. The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.

The City of Cheyenne Future Land Use Plan (PlanCheyenne) identifies this area as a *Mixed-Use Commercial Center*. The Mixed-Use Commercial category is intended to promote a range of land uses, with primarily retail, office, light industrial, and live/work designed as an "activity center".

Mixed-Use Commercial Activity Centers are located throughout the community to serve the day-to-day commercial and service needs of surrounding neighborhoods. Mixed-Use Commercial areas should be located near principal arterial or minor arterial streets or transit facilities and can become larger activity centers if they meet the Mixed-Use Activity Center criteria.

2. The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas;

Existing zoning on nearby properties is primarily Commercial and Mixed-Use (CB/MUB), is integrated into the Dell Range Commercial corridor and serves as an "Activity Center" as defined in PlanCheyenne.

3. The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district;

The use(s) on the site are not anticipated to change. The property is occupied by the Cheyenne Housing Authority (CHA), a quasi-public entity. "The Cheyenne Housing Authority is a very vital component of the community and state, both from the perspective of meeting community and housing needs and enhanced economic impact through the administration of its programs."

4. The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning;

There is no foreseeable reason that a P - Public designation on the site would preclude compliance with Article 4.

5. The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.

5.6.1 P – Public District Standards

a. **Intent.** The P district is intended primarily for public sites, buildings and uses where activities conducted provide service to the public, including educational facilities, recreational areas, and community service facilities. The sites, buildings, and uses in this district may create important identifying features of the neighborhoods and centers of the City, and should incorporate distinctive civic architecture and site design that emphasizes Cheyenne's regional architectural identity through character, quality, and authenticity where appropriate.

b. **Applicability.** The P district is applicable to government buildings and uses in areas where it is necessary to support adjacent or nearby development with public services or facilities, and specifically the Parks and Open Space or Public and Quasi-public future land use categories in the Comprehensive Plan.

The zone change meets the intent and applicability statements of the P District as defined in the Unified Development Code (UDC).

JUL 01 2013
RECEIVED

6. The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.

This criteria is not applicable as the site is already built and no substantial changes are proposed. The property is acceptable for all uses allowed in the Public District.

7. The review and recommendations of other reviewing bodies.

N/A at this time.

8. Whether the application will harm the public health, safety, or general welfare.

As there are no changes to the existing conditions and there is sufficient circulation on and to the site, there is nothing in this proposal which would cause any harm the public health, safety, or general welfare.

BUILDING & DEVELOPMENT OFFICE

JUL 01 2013

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Approved as to
form only:
[Signature]
Date: 8/5/2013

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE PURSUANT TO SECTION 2.2.1, ZONING MAP AMENDMENT, SECTION 5.1.2, ZONING DISTRICTS ESTABLISHED, AND SECTION 5.1.3, OFFICIAL ZONING MAP, OF THE CHEYENNE UNIFIED DEVELOPMENT CODE, CHANGING THE ZONING CLASSIFICATION FROM MUB MIXED-USE BUSINESS EMPHASIS TO P PUBLIC FOR A PORTION OF LOT 1, BLOCK 2, AND ½ OF VACATED VOSLER PLACE, PLAZA DEL RANGE, CHEYENNE, WYOMING (LOCATED AT THE NORTHWEST CORNER OF THE INTERSECTION OF SHERIDAN STREET AND RIDGE ROAD)."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment ("zone change") for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on August 5, 2013, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as a portion of Lot 1, Block 2, and ½ of vacated Vosler Place, Plaza Del Range, Cheyenne, Wyoming is hereby changed to P Public.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

RICHARD L. KAYSEN, MAYOR

(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK

publish date: _____

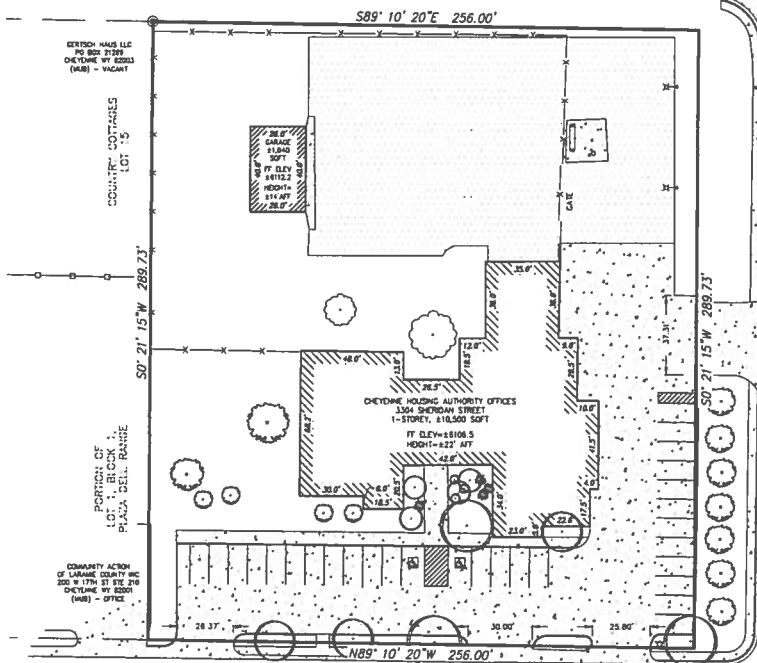
MARGE ADOLF
3218 GREGG WAY
CHEYENNE WY 82001
(M-1) - RESIDENTIAL
COLE HEIGHTS
ADDITION
LOT 9

MORGAN, PETER & ET UX
1304 GREGG WAY
CHEYENNE WY 82001
(M-1) - RESIDENTIAL
MORGAN ADDITION
LOT 1, BLOCK 1

PENCE, LESLIE O ET UX
8008 WEST 1ST RD
CHEYENNE WY 82001
(M-1) COUNTY - RESIDENTIAL
DELL RANGE
ADDITION
POR TR 20

MARGE FAMILY TR C/O
MARGE ADOLF J ET UX
1304 GREGG WAY
CHEYENNE WY 82001
(M-1) COUNTY - RESIDENTIAL
GREEN SUBDIVISION
LOT 5

GREGG WAY (60' R/W)

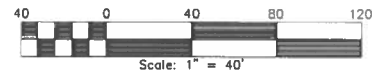


SHERIDAN STREET (60' R/W)

CITY OF CHEYENNE
CITY CLERK'S OFFICE
281 CHASE AVE 8th FL
CHEYENNE WY 82001
(M-1) - VACANT
POR. LOTS 1 & 2, BLOCK 3
PLAZA DELL RANGE

TACO JOHN'S INTL, INC
PO BOX 1508
CHEYENNE WY 82001-1508
(C-1) - RESTAURANT
PLAZA DELL RANGE
POR. LOT 2, BLOCK 3

CHRYST COMMUNICATIONS INTL
3000 E 1ST AVE
SERVING CO. BLDG
(M-1) - OFFICE/REPAIR
DELL RANGE
ADDITION
POR TR 22



LEGEND

- FOUND 1 1/2" ALUMINUM CAP
STAMPED "SSS P.L.S. 2500"
- ⊙ FOUND 3/4" IRON ROD
- ⊙ FOUND IRON PIPE
- ⊙ EXISTING FIRE HYDRANT
- X- EXISTING CHAINLINK FENCE (6'H)
- O- EXISTING WOOD FENCE (6.6'H)
- ▬ EXISTING CONCRETE SURFACE
- ▬ EXISTING BITUMINOUS SURFACE

LEGAL DESCRIPTION

3304 SHERIDAN STREET
PORTION OF LOT 1, BLOCK 2,
PLAZA DELL RANGE, AND 1/2 OF
VACATED VOSLER PLACE
LARAMIE COUNTY, WYOMING.

ZONING

EXISTING MUB
PROPOSED P

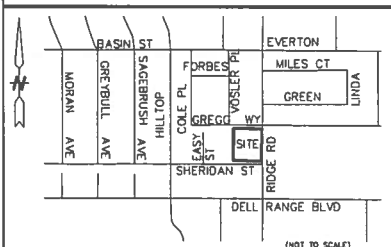
DELL RANGE RETAIL CENTER LLC
C/O DINA ENTERPRISES INC
1901 AVE OF THE STARS STE 800
LAS VEGAS NV 89155
(M-1) - RETAIL CENTER
DELL RANGE
MARKETPLACE
2ND FLOOR
LOT 5, BLOCK 1

ANCHORAGE PROPERTY LLC
C/O MC DONALD'S OFFICE
7300 YELLOWSTONE RD
CHEYENNE WY 82001
(M-1) - RESTAURANT
DELL RANGE
MARKETPLACE
3RD FLOOR
LOT 1

LOT COMPUTATION TABLE

TOTAL SITE AREA	74,168 SQ FT
BUILDING AREA	10,250 SQ.FT.
PARKING PROVISIONS	30 (INCL 2 HC)
LANDSCAPE AREA	37,947 SQ.FT.
ESTIMATED TRIPS PER DAY	NO CHANGE

VICINITY MAP



\\2013 DWG\\13239 L1 PLAZA DELL RANGE\\13239 CHA_ZC.DWG

ZONE CHANGE MAP

FOR

A PORTION OF LOT 1, BLOCK 2, PLAZA DELL RANGE AKA 3304 SHERIDAN ST.

CITY OF CHEYENNE,
LARAMIE COUNTY, WYOMING.

PREPARED JUNE, 2013



STEEL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS

1102 WEST 19th ST. CHEYENNE, WY. 82001 • (307) 634-7273
756 GILCHRIST ST. WHEATLAND, WY. 82201 • (307) 322-9789